

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2891

By: Townley

AS INTRODUCED

An Act relating to tourism; providing certain purchases by the Oklahoma Tourism and Recreation Departments are exempt from the Oklahoma Central Purchasing Act; providing for exempted purchases; defining term; providing limitation; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2239.1 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. The following purchases by the Oklahoma Tourism and Recreation Department shall be exempt from the Oklahoma Central Purchasing Act:

1. Merchandise for resale purchased for and sold over the Internet, in publications or through Department retail outlets, such as lodges, gift shops, golf course pro shops, restaurants, and other purchases made for the production of such merchandise; and

2. Materials, supplies, and services necessary for the efficient and economical operation of revenue generating, Department

1 operated facilities and programs, including those made to maintain
2 or improve guest perception of quality and service including, but
3 not limited to, mattresses, pillows, bed skirts, drapery, small
4 appliances customary in hospitality spaces such as hotel or lodge
5 rooms and cabins, pool equipment, and pool maintenance costs.

6 B. For purposes of this section, "revenue generating" means a
7 purchase that would affect the ability to generate revenue at a
8 Department operated facility or program. Revenue generated by the
9 agency is built into the Department's budget to fund operational
10 expenses and salaries. Loss of revenue will require the agency to
11 reduce staff or seek additional funding to cover the loss created by
12 delays in acquiring goods and services fundamental to generating
13 this revenue.

14 C. No exemption provided in this section shall be construed for
15 the use of leasing or contracting for state-owned restaurants in
16 Oklahoma state parks.

17 SECTION 2. This act shall become effective November 1, 2025.

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